

PROLOGUE

What Has Changed in Two Decades, and What Remains the Same?

INTRODUCTION

We begin our updated critique of the American family court system by acknowledging that, notwithstanding the fact that mothers are often placed at risk of incarceration, fines, and losing all contact with their children in retaliation for requesting the family courts to shield their children from abuse committed by the other parent, there have still been some successes in this uphill battle to reform the family courts. Such successes give us reason for hope. By elucidating the problems prevalently found in the family court system, we see evidence of steady efforts to effect change. Because for those who have become aware of the troubling patterns of family court dysfunction, it becomes increasingly hard for them to accept the dismal status quo.

Most notably, a cadre of reformers have set the wheels in motion for course-correcting a system that has careened out of control in those—all too frequent—instances in which family court decisions are contrary to the safety and well-being of abused children. Taking a balanced approach, we acknowledge that there are many good judges who zealously

protect children from harm. However, there are many who do not. And too many children in custody matters are thus falling through the cracks in the system.

Among those who have had a significant effect on improving the family court and child welfare system is Dr. Jeffrey L. Edleson, whose noteworthy contributions will be discussed at length in the addendum to the third section of this book. Specifically, Dr. Edleson, in collaboration with his colleague, Susan Schechter, authored a comprehensive guide for court professionals and child advocates in protecting the welfare and safety of children. Their seminal book, *Effective Intervention in Domestic Violence and Child Maltreatment: Guidelines for Policy and Practice*¹—better known as the “Greenbook” (after the color of its cover)—whose focus is “to present leaders of communities and institutions with a context-setting tool to develop public policy aimed at keeping families safe and stable,”² has spawned an impressive body of literature based on its comprehensive and cogent recommendations for guiding professionals in working with battered women and abused children.

Although it was first written in 1999, a concrete example of the effects of the Greenbook in improving child safety appeared twenty years later in a 2019 journal article. In “Advocacy Perspectives on the Greenbook,” Lucy Salcido Carter explained that “[w]hen domestic violence is an issue in the case, it is important not to have [issued] an automatic finding of failure to protect against the non-offending parent [the mother], but instead to recognize that abuse is happening to the adult victim and that the perpetrator is exposing the child to the domestic violence.”³

Similar to the Greenbook’s introduction of helpful policies and practices in protecting children, on the clinical front some noteworthy advances have been made that deserve mention. Most notable, eminent neuropsychologist and family counseling expert Dr. Robert (Bob) Geffner spearheads a unique continuing education training program for clinicians that introduces to the participants advanced research and clinical methods for assessing and treating intrafamilial abuse and trauma.

Founder of the Institute on Violence, Abuse and Trauma (IVAT), Geffner is responsible for providing thousands of therapists with training in abuse and trauma intervention since IVAT's creation in 1984. With a focus on educating the mental health profession about the traumatic effects on children judicially ordered into the custody of a sexually abusive parent, Geffner has paved the way for children and adult survivors to receive the trauma intervention therapy they need to heal from exposure to ongoing assault. His work has resonated throughout the mental health profession and has established a new standard.

All in all, dedicated researchers and clinicians have taught us that it requires patience and forbearance to rehabilitate a system that has become tainted with prejudice, myths, and bad practices. We hope this painstakingly candid critique of the family court system will motivate, inspire, and galvanize change in how judges approach a custody decision involving a protective parent, where the other parent is credibly accused of child sexual abuse, so that tendentious mental health theories interlaced with gender, racial, ethnic, and social class biases no longer inform destructive family court rulings, as they so often have.

We must not forget that without an enlarging contingent of family court reformers, our successes are likely to remain limited and fragmentary. There have been small but measurable successes—more judges, and others in the family court system, have been made aware of the pitfalls of system biases that can endanger children's safety and welfare—but we continue to observe serious wrongs. In case after case, the evidence reveals a system that all too often turns its might against protective mothers and consigns abused children to a tragic future of helpless suffering. No wonder so many mothers caught up in family court litigation describe their experience as "trial by ambush." In case after case, protective parents face an unremitting onslaught of legal maneuvers, all too often involving aggressive collusion between the allegedly abusive parent, caseworkers from Child Protective Services (CPS), and even the child's court-appointed attorney. And abuses like these are particularly

harmful to Black, Indigenous, and People of Color (BIPOC) litigants, who have to shoulder the burden of race on top of the systemic biases and shortcomings of the family court system.

For these reasons, we offer a second edition of *From Madness to Mutiny* in the hope that it will stimulate purposeful and productive discourse—not only in the classrooms that will produce the next generation of lawyers, judges, and social workers, but in the hospitals, medical offices, and child evaluation centers where evidence of domestic violence and child abuse is a recurring reality. Sociologists, psychologists, feminists, policy makers, and others must be enlightened to the scourge of gender bias that has entrapped far too many mothers in the family courts. Those mothers suffer the anguish of seeing their children harmed; many are subsequently expunged from their children’s lives or restricted to minimal contact with them. We believe that this malady must be attacked at its roots. This was the purpose of the first edition of our book, and likewise the warrant for the second.⁴

PART I—A FAMILY COURT CUSTODY CRISIS OF EPIC PROPORTIONS

United Nations Addresses Family Courts’ Pervasive Gender Bias and the “Double” Victimization of Women and Children as a Global Human Rights Crisis

In the fall of 2022, the United Nations Human Rights Office of the High Commissioner issued a “Call for Inputs—Custody Cases, Violence against Women and Violence against Children,” which was a far-ranging request to academic institutions, international organizations, and government agencies for data pertaining to the gravity of abuses perpe-

trated against women and children caught in the family courts around the world.

Pointing to family courts' tendency to dismiss evidence of domestic violence and child abuse in custody cases, the "Call for Inputs" asserted that many women who are victims of violence and whose children have been abused by the father will "face double victimization as they are punished for alleging abuse," and by "losing custody" of their children "or at times being imprisoned." Identifying the crux of these disastrous custody decisions, the UN Office of the High Commissioner pointed to family courts' widespread reliance upon concepts such as "parental alienation" (in which a parent, usually the mother, is unjustly blamed for any hostility shown by an allegedly abused child toward its father). The High Commissioner's Office pointed out that though "these concepts lack a universal clinical or scientific definition," they are widely accepted in the family courts as justification for stripping a mother of custody of her child.

Driving this major UN Human Rights project was a need "to examine the ways in which family courts in different world regions refer to parental alienation, or similar concepts, in custody cases and how this may lead to double victimization of victims of domestic violence or abuse" and "to document the many ways in which family courts ignore the history and existence of domestic . . . violence and [child] abuse in the context of custody cases" while studying "their grave consequences [to] mothers and their children."

Furthermore, the Human Rights Office of the High Commissioner pointed out that one of the goals of its international study is to learn more about "any intersecting elements such as age, sex, gender, race, ethnicity, legal residence, religious or political belief" that result in poor case outcome for women and children. They stated the overall purpose of their study is to "draw attention to the scale and manifestation" of the double victimization of women and children when courts across "many countries, spanning all regions of the world" discredit mothers' pleas

to protect their children from abuse and to “offer recommendations for States and other stakeholders to address the situation.”⁵

The UN study offered hope to women’s groups across the globe. In the United States, The Women’s Coalition—a well-organized group of mothers and advocates devoted to collectively raising awareness about the custody crisis—was optimistic about the project. The group’s founder, San Diego resident Cindy Dumas, a PhD candidate in psychology whose career was derailed when she became a victim of the family court and was forced to go on the run with her children, posted the following on her website:

This is the first time a mechanism of the UN HRC has prioritized this issue and initiated an inquiry. It is a leap forward in our efforts to get it officially recognized as a human rights violation. The Women’s Coalition has previously submitted three petitions, which have likely contributed to them initiating this inquiry.⁶

Shortly after the UN’s announcement of its “Call for Inputs,” The Women’s Coalition distributed a questionnaire to protective mothers. In the first two weeks, Dumas received nearly four hundred completed questionnaires from mothers who had lost their children to an unsympathetic family court system, many of whom having lost not only custody but visitation rights with their children, from whom (in some cases) they were now permanently estranged. Her questionnaire covered all the component parts of the family court system that contribute to the cruelest rulings against mothers. But even more so, it captured the harm inflicted on a child who is forced to live with an abusive father—harm that often includes induced hostility against the mother so strong that reconciliation becomes impossible.

By early summer 2023, the UN’s Human Rights Office of the High Commissioner would produce a conclusive report of its findings. The

press release accompanying its report had an alarming heading: “Urgent reforms needed to protect women and children from violence in custody battles: UN expert.” The report used harsh language in its description of the family courts: “Deeply embedded gender bias that pervades family court systems across the globe is placing women and children in situations of immense suffering and violence, a UN expert said today.”

UN Special Rapporteur Reem Alsalem, who conducted the study, went on to state that “the tendency of family courts to dismiss the history of domestic violence and abuse in custody cases, especially where mothers and/or children have brought forward credible allegations of domestic abuse, including coercive control, physical or sexual abuse is unacceptable.” Perhaps most telling was Alsalem’s warning about the effects of a failed family court system on BIPOC mothers: “The report underscores that minority women face additional barriers when being charged of [sic] using ‘parental alienation’ in part due to increased barriers in accessing justice as well as negative stereotypes.”⁷

Inside the Torture Chambers of the Family Courts: Forced Weaning of Young Infants to Accommodate Overnight Visits to the Abusive Father

In recent years, family courts have removed very young children, including nursing infants, from mothers with much greater frequency than in the past. Even twenty years ago, when researching the first edition of this book, we found cases in which infants and toddlers were removed from protective mothers. However, today’s family courts are still more likely to take such drastic steps.

Such orders have consequences that can border on the grotesque. A nursing mother, though forbidden to keep her child overnight, may be forced to deliver bottles of her expressed breast milk to an allegedly

abusive father so that *he* can hold the child at his mercy for as long as the family court deems proper.

Even when the court's order requires "only" that the mother deliver the child to the allegedly abusive father for three or four overnight visits each week, the consequences can be harrowing. Some nursing infants do not adjust readily to expressed milk (or formula), in which case they may go hungry, which the mother will have to deal with after she retrieves the child. A mother caught in this bind may try to accustom the baby to bottled milk or formula instead of breast milk solely to accommodate the court's directives. But while this prevents the child from being dehydrated while in the father's custody, it is probably not in the child's best interests. Notably, both the World Health Organization (WHO) and the American Academy of Pediatrics recommend breastfeeding of an infant for at least one year, and ideally for two to two and a half years. The reason for this is that breastfeeding inures to the benefit of the baby both emotionally and physically by strengthening its immune system to fight off disease, improving its growth and development, and fostering a healthy maternal-child bond.

In the winter of 2023, a Virginia mother made headlines when the judge forced her to wean her four-month-old infant so that the infant's father could have extensive visitation with the child, even though he had abandoned the mother during her pregnancy.⁸ *The Washington Post*, which broke the story, set off a firestorm when the fathers' rights activists falsely claimed the mother was using breastfeeding as a "weapon against visitation." One of the authors of this book (Amy Neustein) spoke to the mother at length and learned of her Sisyphean struggle against a court system that had condemned her for being "uncooperative." The record of her case did not support the court's criticism; in fact, there was evidence that the mother had gone out of her way to encourage the father's participation in the life of their child. Moreover, she had offered to have him come to her home for visits with the child, so that she could nurse the baby as needed during the visits. The court required her,

instead, to express her milk so that the father could spend his visits elsewhere.

Concerned about the mistreatment of this lactating mother, Neustein—together with author Michelle Etlin—wrote a letter to *The Washington Post*. The paper published their letter under the heading “Infants are being penalized in the name of ‘men’s rights.’” Their letter began: “This story is all too familiar to those who study the family court system. For the past four decades, we have researched how U.S. domestic relations courts...have cruelly and senselessly torn infants and children from their mothers.”⁹

Another Instance of Violence against Women: Jailing of Mothers on Untenable Grounds

Another problem that seems to be on the rise in family courts is the arbitrary jailing of mothers. One protective mother in Maryland, who is diabetic, told us that she was jailed for a day by a family court judge who was angry because, due to a diabetic episode, she was having trouble attending to his questions. Another mother—this one in New York’s Westchester County—was jailed for arriving late for a hearing, even though she explained to the judge that she had been delayed in bumper-to-bumper traffic.

Mothers, even if not jailed, have in recent years been threatened with incarceration for talking to their own supportive family members about their family court proceedings, even if the family members will never need to serve as witnesses either for the mother or as “hostile” witnesses, called by the other side. Forbidding a desperate mother from seeking moral support from her own family members causes her to feel isolated, demoralized, and browbeaten. Some mothers become suicidal, while others have actually succeeded in taking their own lives.

Ending Institutional Violence against Mothers and Children

The sum total of such oppressive measures—punitive deprivation of child custody, judicial interference with breastfeeding, and unjustified incarceration of family court litigants—represents a genuine human rights crisis, and not to mention—in many cases—violations of law and of constitutional protections. This senseless infliction of institutional violence on women and children demands a thorough investigation by the United States Attorney General. And such an undertaking may be less unlikely than it sounds.

Legal scholar and first champion of the protective mother, Jeremiah B. McKenna, to whom we have dedicated this book, concluded after research into the relevant federal statutes, that a US Department of Justice investigation into family courts and their collaborating auxiliaries (Child Protective Services, law guardians,¹⁰ foster care agencies, visitation centers, etc.) was not only feasible but entirely justified by the facts. Based on McKenna's research Amy Neustein directed a thirty-one-page memorandum to then-United States Attorney General Merrick Garland (under the Biden Administration) describing family court abuses in a few particularly dysfunctional counties.¹¹ A federal prosecution can accomplish more than the application of criminal penalties to a few individuals. It can signal to all family court officials and auxiliaries that the corrupt practices that mar so many child-related cases—rejection of relevant evidence, removal of children without due process of law, denial to mothers (and especially mothers who are women of color) of basic civil rights—will no longer be tolerated.

In fact, the paradigm on which the existing system was designed may prove unworkable altogether. It may, given its deep-seated venality, become defunct, to be replaced perhaps by a panel of concerned professionals and lay members who are not driven by any agenda, as their only goal would be to protect the mother-child bond and shield the child from predatory harm. This would be more akin to a "King Solomon's

Court”—where wisdom and compassion would determine the fate of a child rather than politicking, cronyism, and political favors.

Even a less radical solution might work. Namely, a system with more pragmatic goals for determining child custody (as opposed to making custody decisions by invoking the loosely defined “best interests” principle), which recognizes the central importance of mother-child bonding and the necessity of upholding the parties’ civil rights, would be a vast improvement. At the very least, such a system might put an end to the institutional violence faced by far too many women in the family courts.

PART II—PROTECTIVE MOTHER MOVEMENT: THEN AND NOW

Protective Mother Movement Makes Great Strides in Recent Years

In the nearly two decades since the publication of the first edition of this book—which showed how courts too often punish mothers with the loss of custody of their children when they make good faith allegations of sex abuse against the child’s father—we have witnessed the burgeoning of a social movement to reform the family courts. This is due in part to the elaborate networking offered by social media and, more recently, by Zoom meetings that bring together protective mothers across the country for informal but important virtual meetings. There are now scores of trusted websites (and blogs) posting the latest relevant research studies, news articles, and video and YouTube recordings, all available to mothers who have lost their children to the family courts.

Hence, no mother is fighting alone today—isolated in her despair—for she can now readily avail herself of the resources available from a

multitude of websites, where some of which provide referrals to family law attorneys, potential expert witnesses, or give advice on legal strategies for winning back custody of children. Some of these websites propose specific legislative reforms to improve the functioning of the family courts while others propose a jettisoning of the existing court system altogether, to be replaced by a more humane structure for determining children's best interests. Regardless of their approach, the mantra of all these sites—National Safe Parents Organization (NSPO),¹² Mothers ReVolution,¹³ Custody Peace,¹⁴ The Women's Coalition,¹⁵ Safe Kids International,¹⁶ One Mom's Battle,¹⁷ The Leadership Council,¹⁸ and California Protective Parents Association,¹⁹ just to name a few—is to raise public awareness about the catastrophically high numbers of mothers losing custody to abusive ex-partners or spouses.

The term “protective mother”—which has become a part of the vernacular of family law practitioners and women's groups across the country—was coined around 1986 by mental health professionals who had formed the American Professional Society on the Abuse of Children (APSAC). It refers to a mother who mounts a fervent struggle to protect her child from all forms of abuse, particularly sexual abuse committed by the father, within a hostile family court system intent on beating her down every step of the way. And we would add that another part of the protective mother's struggle is her engagement in organized protests against the broader effects of family court inequities. Some of those activities have included participation in peaceful demonstrations in front of state capitols around the country as well as at the nation's capitol. Letter-writing/e-mail campaigns, petitions, and social media posting/likes have served as another way of voicing concerns about the crisis in the family courts. A five-minute Google search of the protective parent/family court issue will provide an excellent gauge of the rhythm and beat of this growing social movement.

Plight of Protective Mothers Heeded in Academic Settings

The protective mother issue now resonates in the halls of universities, whereas two decades ago when the first edition of this book was being prepared for publication there had only been sporadic interest in this topic at the institutions of higher learning. For example, one of the authors (Amy Neustein) was invited in the fall of 1990 to lecture at the Women's Law Forum at Rutgers State University School of Law²⁰ only because the professor organizing this effort, H. Joan Pennington, was a remarkable activist and visionary, having founded the National Center for Protective Parents, Inc., as a legal resource for mothers caught in hostile family court litigation. But such efforts to bring this subject into undergraduate and graduate classrooms at that time were certainly the exception to the rule.

Today, the Battered Mothers Custody Conference, co-chaired by Professor Mo Therese Hannah, is held annually at Siena College in Albany, New York, where Professor Hannah serves as a full professor of psychology. The attendance at her conference has skyrocketed since its inception in 2004; it now serves as the premier nexus for the protective mother movement. More recently, the California Protective Parent Association has partnered with the University of California Irvine (UCI) Initiative to End Family Violence; and in doing so, this grass roots parents' group has joined a major academic institution to collaborate on an annual, full-day, accredited continuing legal education symposium (although at present, held virtually), which started in fall 2021. The conference, titled "Forward Together: Multidisciplinary Perspectives on Protecting Children from Abuse,"²¹ had a panel of speakers consisting of several activists who addressed the colossal mistreatment of mothers in the family court system. All of this points to a sea change in attitude.

That is, whereas mothers' disenfranchisement in the family courts—which had at one time been solely the province of activists—had now entered mainstream institutions for discussion and debate. And as pre-

viously mentioned, the discourse on this topic was not a flash in the pan; instead, it has become a regularly occurring annual event. This is a marked change from 2005 when the first edition came out. Back then, Amy Neustein had been invited to serve as visiting faculty at the Tristate Family Law Conference held by the National Judicial College in Bretton Woods, New Hampshire.²² The attendees at the conference, and the conference organizer herself, looked upon this subject as novel, but no less worthwhile to explore. This represented a healthy discourse on family courts' betrayal of women and children inside the protected corridors of a judicial education institution, although back then such a forum was more or less an isolated event.

As the years moved onward, and as academic institutions began to show a continuing and steadfast interest in the abuses of family court, George Washington University Law School would become another very important venue for broadcasting these profound injustices toward mothers who tried to protect their children from abuse. George Washington University Law School Clinical Law Professor Joan S. Meier became the Founding Director of the National Family Violence Law Center (NFVLC) situated at George Washington University Law School. The center's function is described as follows: "using empirical research, policy development, and collaborative advocacy the NFVLC educates professionals, the media, and the public about the problems in court responses to adult and child abuse, and advances critical legal reforms and systemic change."²³

In fall 2021, *Family & Intimate Partner Violence Quarterly* published a study, titled "Protective Mothers, Endangered Children," spearheaded by Professor Geraldine Butts Stahly of California State University at San Bernardino, together with two highly respected activist organizations, the California Protective Parents Association and Child Abuse Solutions, Inc. The data collected for this study came from a hard-copy questionnaire, consisting of 101 questions, which had been distributed at national and international conferences concerning domestic violence and child abuse. The purpose of this study was to learn about the "ex-

perience of mothers attempting to protect their children from abuse.”²⁴ The authors of this study were so alarmed by the results that they began to circulate its findings (399 mothers from across the country had filled out the questionnaire) at multiple workshops and poster sessions *ahead of* its publication because they felt an urgency to alert professionals to the serious failures of the family courts.

Specifically, the study authors observed evidence that, again and again, mothers lost custody of children to fathers who appeared to place them at risk. In California, where the rate of such system failure appeared to be especially high, mothers lost custody of children to identified abusers in 85.4 percent of the cases described, as opposed to 74.6 percent in other states. The study authors asked for an overhaul of every facet of the system—custody evaluators, mediators, judges, child welfare services, attorneys for children, state law enforcement—including setting up “a citizen review ‘second look’ commission . . . at the state and federal level to review cases in which children are currently at risk, with the power to intervene [in order] to protect [children].” The study concluded with an exhortation for “[i]mmediate and effective changes [that] must be made to law, policy and procedure to provide safety for children of divorce and separation.”²⁵

Protective Mothers Finally Find a Sympathetic Ear in the Mass Media

On the media front, likewise, we have witnessed significant progress in addressing the protective mother issue since we first wrote about it in 2005. Those changes in the news media’s posture deserve mention. To wit, in the early days of the protective mother movement, the media coverage was sporadic at best. But even more troubling was the fact that

it was so unpredictable at times, and often biased against the mother.

As a result, many mothers were “duped” when reporters assured them the hard news coverage or feature story would be in their favor, only to learn too late of the influence of fathers’ rights groups on the press at that time. Indeed, quite a few protective mothers, having struggled to convey their stories to reporters, found themselves portrayed in a terribly unflattering light when the report finally appeared. By contrast, the fathers they suspected of abusive conduct, and even more so their advocates—including spokesmen for fathers’ rights organizations—usually appeared as respectable and credible, regardless of the facts of the case.

More often than not, the copious documentation supplied by the mothers to prove their innocence had no effect on the outcome of the news media story. However, since the publication of the first edition, we have seen more thoughtful and accurate reporting of these issues; it is less common to find myths and prejudices about protective mothers reported as fact.

For example, in 2016, investigative journalist Laurie Udesky, working for 100Reporters, a nonprofit news organization giving a platform for freelance journalists writing about corruption and social injustices, published a story on the plight of mothers in the family courts. Her article was titled “Custody in crisis: How family courts nationwide put children in danger.”²⁶ A year later she would be given the Excellence in Journalism Awards, from the Society of Professional Journalists, Northern California Chapter, for her work in exposing the ill-fated decisions of family courts that place children in harm’s way.

In 2019, *The Washington Post* would write a feature story on the abject plight of mothers punished with the loss of custody when they try to protect their children from abuse perpetrated by the other parent. The article, aptly titled “‘A gendered trap,’” quoted Meier, who found a pattern of judges repeatedly placing children with the abusive parent: “Meier called the pattern a ‘complete betrayal of the mission’ of the

courts, which are supposed to prioritize the welfare of children.”²⁷

What prompted that prominent news coverage in *The Washington Post* was Meier’s large-scale study that found that “mothers who report abuse—particularly child abuse—are losing child custody at staggering rates.” In fact, the study showed that in over 73 percent of the time when mothers alleged abuse, and the other parent cross-claimed “parental alienation” (the notion that when a child refuses to have a relationship with a parent it is due to purported “manipulation” by the other parent), the family court judges will switch custody to the alleged abuser.²⁸ The Meier study, as a matter of fact, was able to hold up admirably to an attempt made by two critics—with a clear agenda—to negate these significant study findings.

Namely, in 2022, the *Journal of Family Trauma, Child Custody, and Child Development* (formerly the *Journal of Child Custody*) published a strong and persuasive commentary by Meier and colleagues that pointed out that opponents of her study (although only two—certainly not a huge number) had based their criticism on “incorrect speculations and misstatements about [their] methodology” and that any possible “methodological flaws” that may have “legitimately cast doubt on the validity of the FCO [Family Court Outcomes] study’s findings have not, to date, been identified.” In responding to her critics, Joan S. Meier and her coauthors put this matter finally to rest by showing the “lack of substance” to their critics’ findings “while substantiating the credibility” of their assiduous research of family court custody (case) outcomes when parental alienation is raised to discredit the mother.²⁹

In her successful rebuttal of her critics’ fallacious arguments, Meier preserved the important contributions of her study and, no less, the eye-opening lead story in *The Washington Post*. This was crucial, as any progress made in getting exposure for the protective mother issue in a major outlet, such as *The Washington Post*, might have been reversed if the critics of her study have gone unanswered. What we see here is that the deeply rooted gender biases casting aspersions on the credibility of

mothers cannot be left unchallenged in either the professional circles³⁰ or in the mass media. As for the latter, because it is axiomatic that public opinion drives policy makers and legislators, it is imperative to have media coverage that is supportive of protective mothers instead of working against them.

While the 2019 *Washington Post* article still remains the most highly cited news story today about the undeserved backlash against mothers who in good faith report child sexual abuse to the courts, a handful of mainstream media venues have, in subsequent years, reported on this topic as well. For example, in May 2021, NBC aired a two-part series on children who were murdered by their fathers during unsupervised contact with their children. Pointing to the lack of judicial oversight or accountability, child advocates who were interviewed for this NBC series argued for an overhaul of the court system, including the passage of laws that would compel courts to consider abuse evidence—both present and past—when making custody/visitation decisions so as to ensure children are protected from violence and abuse and, in the most extreme case, death.³¹

Two years later, in 2023, New Hampshire investigative journalist and author Olivia Gentile wrote an outstanding feature-length story for *Insider* on how the discredited “Parental Alienation” theories have contaminated the American family courts, causing abused children to be confined to the custody of their abuser with little or no access to their mothers, who strenuously try to protect them. Reporting on a San Diego case, as an example of this phenomenon, Gentile showed how a mother lost custody of her children after her son’s therapist reported to the court how the twelve-year-old boy was coerced by the father to perform lewd acts that the child described as “disgusting.” In her reporting on this story, Gentile showed that several years after the mother lost custody of her three children to their abusive father, the mother accidentally found in a cloud storage account she had once shared with her ex-husband numerous sexually explicit images (both video and still shots) the father

had taken of the children after he obtained custody of them.³²

In our interviews with women who had conversations with reporters, we found that journalists like Gentile were deeply appreciated by the protective mothers. What we heard was that she gave generously of her time to distressed mothers, often answering their e-mails—often at late hours of the night, and on weekends and holidays, too. Notably such reporters were not feminist writers with a long history of championing women's causes; instead, they were sensitive and caring journalists who witnessed an injustice meted out to protective mothers and applied their journalistic skills to try to bring these family court travesties to light.

Feminist Writers and Researchers Come Together to Champion the Plight of Protective Mothers to a Broader Audience, Outside of the Traditional Feminist News Outlets

This past decade has proved historic for broadcasting the protective mother issue to a wider readership. Whereas in the early days, namely the 1980s, 1990s, and early 2000s, it was mainly feminist newsletters and magazines that had profiled the wretched fate of mothers peregrinating through the family court and child welfare system, today one can find discussion of these critical issues in venues outside the feminist media. And the researchers who have labored to study this problem have much to do with the progress in that regard.

For example, *Providence Journal* columnist Anne Grant, who is the former executive director of the Women's Center of Rhode Island, has paid much attention to the gender biases pervasive in the family courts in her writings on social inequities and unbalanced power across various sectors of society. The *Providence Journal* is certainly not a feminist publication as it is a general-purpose newspaper widely read in the New England area. In her Amazon review of *Beyond the Hostage Child: To-*

*wards Empowering Protective Parents*³³ by Leora N. Rosen, PhD (former senior social science analyst at the National Institute of Justice), Grant wrote:

This book holds validation for those who have been traumatized when courts removed terrified children from protective parents and gave them to the sole custody of abusers. Dr. Rosen shines a light we need to go forward.

She asserts that alleged crimes of domestic violence and child sexual abuse within the family should never be sent to civil courts that are designed for compromise. She briefly describes five proposed models for change and offers more detail on a sixth, composite model, Child At Risk Classification Office (CARCO) that focuses on a public health assessment of the child's risk of being exposed to violence or abuse. She uses the acronym TRIAL to represent key elements of CARCO: Training, Reporting, Investigation, Adjudication, and Long-term planning—that are woefully absent from the present practice of adversarial litigation in family court.

Grant concluded with plaudits for the author's vision, dedication, and commonsense approach to the protective mother crisis:

Dr. Rosen has performed a huge service by focusing on those of us who feel numbed by our own inability to protect desperate children and non-offending parents from the lies of lawyers and psychologists who have reduced them to a profit center. She [the author] concludes by urging Congress to use its authority and enact CARCO for the District of Columbia, creating a model for the nation. Federal funding incentives can be redirected to inspire other states to follow suit and to end the nightmare that breeds child abuse at family court.³⁴

Protective Mother Issue Gains Stardom in TV Miniseries Now Streamed on Hulu

The media coverage of the protective mother's plight has mushroomed in recent years, even reaching a Disney Channel platform. In 2022, FX aired a five-part docuseries, *Children of the Underground*, which would be subsequently streamed onto Hulu, where it remains to date. The Emmy Award-winning production company, Story Syndicate, had diligently put over three years into the research and production of this spell-binding television miniseries. Executive Producer Ted Gesing had contacted one of us in the fall of 2019, after reading the first edition of this book, saying he was horrified that the family courts had descended into such a state. The documentary convincingly showed the angst of mothers and the cruelties of the family court system that oppress mothers to the point where many have had no choice but to take their children and go on the run—and suffer poverty, lack of medical care, isolation, and chronic stress as a result.

This docuseries on the protective mother issue received good reviews in a number of different media venues: *New York Post*, *The Daily Beast*, A&E's *True Crime Blog*, and *IndieWire*, just to name a few. It was praised on www.rogerebert.com for “captur[ing] the growing pains of understanding mental health, which includes the people and children who were mishandled in the [court] process . . . [and is] all the more sobering when one realizes how certain parts of the family court have not changed, or that the same problems can arise.”³⁵

Yet, some protective mothers and advocates had mixed feelings about the docuseries. They did not take issue with its content. On the contrary, they found this docuseries—in which mothers and (now) grown children had so poignantly and persuasively told their stories—very compelling. However, they had thought the gravity of the injustice and

eloquence in the way the story had been told would finally catapult this issue to the front burner. And they were frankly disappointed when that did not happen.

However, looking at this situation more objectively, who can say that the docuseries won't have that effect; perhaps if not today, then tomorrow? As with any social movement, the exact point of critical mass is hard to predict and, similarly, just as hard to identify when it actually does occur. In fact, it seems that historians are much better able to timestamp critical developments in any political or social movement than those living through that epoch. And certainly, much traction has been built up already. Who would have imagined back in 2005 when this book was first published that someday the topic would occupy a five-part television miniseries airing on a major network and subsequently streamed onto a Walt Disney platform?³⁶

Women's eNews Recognizes the Protective Mother Issue

Under the direction of Executive Director and Editor-in-Chief Lori Sokol, PhD, Women's eNews, the award-winning nonprofit news service that covers issues of concern to women in the United States and around the world, has welcomed editorials on the protective mother issue. Publishing on this news service has been a real boon to protective mothers since Women's eNews is a well-respected global forum for women to share their views on public policy and social reform.

In February 2023, best-selling novelist Talia Carner wrote a compelling piece for Women's eNews on why protective mothers, in some cases, may be perfectly justified in defying family court orders.³⁷ Around the same time, Women's eNews published Amy Neustein's editorial on the looming civil rights crisis in the family courts. Neustein described

how mothers are routinely deprived of due process and equal protection of the laws. One particular injustice described by Neustein is a pattern of judicial orders that prevent mothers from nursing their infants. She offered examples of mothers being court-ordered, under threat of jail and fines, to express their breast milk into a bottle so that the father could have generous and unrestricted long weekends and overnights alone with the infant.³⁸ In many of these cases, the fathers had been absent during the pregnancy and birth. They do not pay child support either. Yet, they demand the infant spend solitary time with them, even though it disrupts the infant's nursing schedule and the mother-child bond.

Women's eNews published a number of subsequent editorials from Neustein. The pieces looked at family court from various angles. These included a post-mortem examination of a high profile case wherein a New York mother, herself an attorney and former federal prosecutor, took her own life after years of abuse by the Westchester Family Court; the harsh removal of custody from mothers who had failed to speak eloquently on the witness stand or had become emotional in court upon facing an abusive and controlling ex-spouse or partner who was trying to take their children away from them; the spontaneous formation of the "Mothers' Vote," an ad hoc voting bloc of protective mothers across blue states, red states, and swing states who are united in their family court plight; and the necessity of going outside the judicial branch to another branch of government when the courts as an entirety have failed to protect women and children.³⁹

We noted in our first edition that we had spoken at length to Rita Henley Jensen, then executive director of Women's eNews, about the protective mother issue. Ms. Jensen was extremely sympathetic, pointing to the daily calls she was receiving from desperate mothers losing their children in family court. However, since that was twenty years ago, the protective mother movement had not yet acquired a unified voice. Few, if any, articles had been published in Women's eNews on the

protective mother plight. Today, the situation is much different. This preeminent digital news service has emerged as the premier platform for sharing in-depth commentaries on the family court system. Certainly, their wide readership in government and in the private sector will gain insight into what mothers have been experiencing on a daily basis in the American family court system.

Protective Mother Movement Builds up Traction on the Political Front

As an example of the kind of traction built up on the political front, in 2017, a group of activists from across the country, led by Constance (“Connie”) Valentine, founder of the California Protective Parents Association, brought one hundred copies of the first edition of *From Madness to Mutiny* down to Washington, DC,⁴⁰ and left copies on the desks of the crucial members of the House of Representatives. Soon thereafter, Ms. Valentine and her co-activists were successful in getting the House to pass a resolution to prioritize child safety in custody and visitation cases. “H.Con.Res. 72,” as it would officially be called, was sponsored by Maryland Congressman Jamie Raskin, along with several of his colleagues, who recognized the urgency of putting forth a resolution to affirm the importance of child safety during family court litigation.⁴¹

Although the Resolution passed in 2017–2018, it left open the possibility of taking the matter, sometime later, to its next level. Written into the Resolution was a suggestion/provision for a full congressional investigation of the family courts that have been proven to show a menacing, baleful, and sinister effect on the welfare of children since they turn innocent children over to abusive parents, while forcing the non-offending mother to stand by and watch her children suffer, and sometimes die, from heinous abuse or neglect. Indeed, when that next step is reached,

the family court backlash against protective mothers will finally be given a front-row seat on Capitol Hill—and lawmakers will listen attentively.

In March 2022, President Biden signed into law the “Keeping Children Safe From Family Violence Act” (commonly referred to as “Kayden’s Law,” named after a seven-year-old Bucks County girl [Kayden Mancuso] murdered by her abusive father during a court-ordered unsupervised visit with the child). Meier, Pollack, and colleagues produced assiduous research to impress upon Congress the need for a special provision to be included in the reauthorization of VAWA (Violence Against Women Act) so as to protect vulnerable children from injury and death at the hands of the abusive father. Seven states, led by Colorado,⁴² have already enacted Kayden’s Law, in whole or in part. They include Colorado, Utah, California, Tennessee, Maryland, Pennsylvania,⁴³ and Arizona. Connecticut is now close to enactment as well. Whilst many more states need to join this effort, the states that have taken the lead clearly demonstrate the power and force of federal legislation in inspiring states to enact laws to protect children in custody battles from being subjected to injury and death at the hands of a parent with a known history of spousal abuse and domestic violence. The incentives to states are even more forceful when tied to federal funding.

While the effects of VAWA have evidently trickled down to the state level, individual states have, similarly, on their own initiated legislation in response to tragic deaths of children in their state. For example, in 2023, several New York senators co-sponsored “Kyra’s Law,” which was named after a two-year-old Long Island girl forced under court order to have an extended visit with her violent father in Virginia who fatally shot her while she slept. “Kyra’s Law” emphasizes the importance of giving sufficient evidentiary weight to claims of domestic violence when determining the custodial and visitation arrangements for a child. The bill stresses that keeping a child safe from a parent with a history of violence should be the first priority of the family courts. Although many of these state bills, such as Kyra’s Law, have not yet been able to gain

the full support of both state-legislative houses needed for passage into law, the passionate commitment of a handful of outstanding legislators gives reason for hope that such bills will eventually make it to the floor.

On the whole, this second edition of *From Madness to Mutiny* is being written at an auspicious juncture in women's history. We are witnessing a collective uprising as mothers, advocates, and scholars unanimously urge an end to violence (both personal and institutional) against women and children in the family courts across the globe. As demonstrated in the previously discussed United Nations Human Rights Office of the High Commissioner study, the family courts have become emblematic of the ghastly violence against women and children at every phase of the judicial process. And we see that the mothers are determined to no longer stand silent in the face of such atrocities—both now and in the future.

PART III—SEVERE MISTREATMENT OF BLACK, INDIGENOUS, AND PEOPLE OF COLOR MOTHERS IN THE FAMILY COURT

In the new material provided as addenda to a number of the chapters from the first edition, we examine in detail the mistreatment meted out to Black, Indigenous, and People of Color (BIPOC) mothers in the family courts. Although we had presented some compelling material in the first edition showing, for example, the jailing of a BIPOC mother from Brooklyn thanks to a capricious ruling of the family court judge, we hadn't examined the family courts and the child welfare system from a racial perspective per se. Now that we have, we can show that in the closed and claustrophobic world of family courts racism flourishes, adding undoubtedly to the severe mistreatment inflicted upon protective mothers.

Black, Indigenous, and People of Color Mothers Suffer Racial Discrimination on Several Fronts

First, BIPOC mothers are slandered by name-calling in the family courts. In addition to the routine psychiatric name-calling directed at protective mothers (“disturbed,” suffering from “personality disorders,” “narcissistic,” “grandiose,” etc.) women of color shoulder the extra burden of having racial epithets hurled at them. For example, in the Brooklyn Family Court, a Latino mother, who was also a police officer, pleaded with the family court judge for the protection of her five-year-old girl from alleged acts of sodomy at the hands of the father. According to the girl’s report, her father had forced himself on her during an overnight visit and the child came back hysterical, crying how she “almost choked.” But when the mother entreated Brooklyn Family Court Judge Leon S. Deutsch (now deceased) to protect her child, he became enraged, calling her (in open court) “an hysterical Hispanic.”

Second, BIPOC mothers are more likely to be incarcerated for contempt of court than their Caucasian counterparts. Interestingly, when comparing the incidence of mere “threats” of contempt of court (as opposed to acting on those threats by jailing mothers), we did not find a higher incidence of threats made against the BIPOC mother. For example, both demographic groups of mothers are equally threatened by family court judges with contempt of court if they would so much as “speak” to anyone (and sometimes this includes parents and/or siblings) about their family court proceeding.⁴⁴ But, when it comes to actually jailing mothers, BIPOC mothers are incarcerated more often than Caucasian mothers, which is very much in keeping with the statistics across the general population that show a much higher percentage of incarceration among people of color.

Third, when the family court strips a BIPOC mother of custody and then orders supervised visitation between the mother and her child (“su-

pervision” is used so as to prevent the mother and child from speaking about abuse, sexual and otherwise, committed by the father, and it also functions as a hedge against the child making new disclosures of abuse), the mother is often forced to see her child at the local *police station*, instead of at a court-contracting visitation setting, as described in the next section. Interestingly enough, a judge’s ordering of supervised visits at the police station is not always contingent on whether the BIPOC mother has the money to pay the visitation supervision costs when visits are held in a private setting. In studying the family court backlash against protective mothers for four decades, we have seldom seen Caucasian mothers ordered into a police setting to see their children. Such arrangements are appalling, and they naturally have injurious effects on BIPOC mothers and their children.

When children see their mothers in the police station, they naturally develop frightening associations with those visits. As they sit in this sterile setting, surrounded by men and women in uniform—many of them carrying guns—they often cannot relax on the visit with their mother. BIPOC families have grown to fear police since they are often the target of police harassment (sometimes tragically leading to injury and death), whereas Caucasian families are more likely to view police as people to whom they can appeal for help. By not giving a BIPOC mother any alternative other than a police station for seeing her child is injurious to the mother and child for many reasons. At the minimum, such visits cause trauma especially for people of color, who try their very best to avoid contact with police altogether, and for good reason. Moreover, a child seeing that their mother must be supervised in a police setting will understandably think their mother did something terribly wrong, otherwise why would she need to be monitored at a police station? In short, inasmuch as it is common for fear of arrest to constantly hover over the BIPOC population, arranging visits for the mother at a police station is wholly destructive to the mother-child relationship. Any angst that the mother feels sitting in a police station can be easily transferred

to the child, making the visits uncomfortable (and often traumatic) for both mother and child.

We followed a case in which a Bronx Family Court judge had ordered the mother to have her visits with her four-year-old daughter (who allegedly was sexually abused by the father) at a police station. The mother had presented medical evidence to the court to substantiate the abuse, but the judge refused to listen. The child's pediatrician had backed up the credible evidence of abuse. And although the child herself gave narrative accounts of how she was abused, neither the law guardian nor the judge heeded the mother's pleas to protect her child. The judge, instead, stripped the mother of custody and transferred the custody of the very young girl to the father. The mother held an executive secretarial position at a Fortune 500 company. So, she could have paid for visitation supervision at a private setting, but the judge forced this BIPOC mother to see her child at the police station instead. This was the only venue the judge would allow for the mother to have visitation with her child. The mother remarried, but continued to fight for her child.

Sadly, her new husband—a lawyer—was unable, despite repeated filings in New York's Appellate Division on her behalf, to alter the draconian visitation arrangement at the police station, let alone to overturn the custody award to the allegedly abusive father. The mother, worn down by repeated failures in her efforts to seek justice, was eventually unable to continue the fight. This took a tremendous toll on her marriage, which eventually fell apart. She moved in with a relative in a southern state, unfortunately far from her daughter. When we asked her husband about whether racism had played a role in the bizarre visitation rulings, he didn't hesitate for a moment. He exclaimed, "For sure . . . and throughout the entire case!"

Fourth, whereas family courts are weaponized against protective mothers, those who are BIPOC are sometimes precluded from the court process altogether, and that can leave the mother with no redress at all. For

example, a Black special education teacher living in Georgia was told last year that she could not even have a hearing before a judge because there are “no available transcribers.” This was untrue—the same Georgia court had made itself available to hear cases brought by Caucasian mothers. Instead, this special ed teacher was shunted to a mediator in lieu of a judge, as the court fell back on its excuse that there were no court reporters available. The mediator rushed the case ahead, sending her allegedly sexually abused seven-year-old daughter into the father’s custody, and subsequently terminated the mother’s visitation privileges with her daughter as well.

The mediator put an end to the mother’s visits with her daughter based on nothing more than hearsay offered by the father. The mother could not rebut this evidence because she had been denied access to the courts. A year later, the mother has still been denied a hearing before a judge, and she still cannot see her child. The child suffers from a congenital disease that has required multiple hospitalizations. The mother, who had been at her daughter’s side throughout all these hospitalizations, is now barred from seeing her daughter. Tragically, soon after the termination of the mother’s visits, the child required yet another hospitalization. Yet, when the child was admitted to the hospital for blood transfusions and dialysis, the BIPOC mother was forbidden to see her there. Speaking to one of the authors, she said she feared “she’d never see her daughter again on earth.”

PART IV—DUBIOUS “BUSINESS MODEL” TAKES HOLD OF THE FAMILY COURTS

The New Economic Realities of the Family Courts—and How It Affects Protective Mothers

The new business paradigm found in the family court system today forces mothers into accepting services at court-contracting agencies, such as those that provide visitation supervision. For context, mothers have traditionally been asked to pay for services ordered by the court. For example, judges for years have been ordering mothers to pay for a court-appointed custody evaluation, costing on average \$15,000 for the evaluation and the expert's report made to the court. Today, however, in addition to the fees for a custody evaluation, mothers must pay for a visitation center facility to monitor their visits with their children. Often paired with the costs of supervised visitation is the judge's mandate that, as a precondition for visitation privileges, the mother must go into "therapy" with a court-approved mental health practitioner, whose sole purpose is to disabuse the mother of her "misperceptions/delusions" about the abuse her children have suffered at the hands of the father.

Often these costs are so prohibitive for the mother that she may stipulate to custody and visitation arrangements—undoubtedly prejudicial to her—merely to be relieved of paying such costly visitation supervision fees. As a matter of fact, the way that many of the family court visitation programs legitimate their charging of protective mothers to see their children is that they claim to maintain a (discretionary) sliding scale. However, in practice, while these visitations centers subsidize the costs for low-income families, such as in cases of inadequate guardianship where children go hungry, miss school, and receive no medical care, they charge the middle-class protective mother at full rate.

Court-Ordered Visitation Used to Prevent the Child from Reporting Any Subsequent Incidents of Abuse

When the courts order supervised visitation for the mother, the "supervision" is used for two purposes: first, to prevent the mother and child from speaking about sex abuse committed by the father; and, second, to

act as a deterrent against the child initiating discussion with the mother in making *new* disclosures of abuse. Even if a child discloses abuse during a supervised visit, the court-appointed visitation monitor is likely to deny that the disclosure took place, because visitation centers get all of their business from family courts. Consequently, they are reluctant to antagonize a judge who has already labeled the mother a “parental alienator” and is hence closed-minded about the abuse. As a whole, such a court “business model” is, for obvious reasons, deeply flawed and counterproductive at best, but inherently deceitful at worst. What follows is an elucidation of just how well these visitation centers—described by critics as “a cottage industry”—are faring financially in today’s family courts. This is important because it illustrates how the family court system has in more recent years become an intensely “greed-driven” enterprise, which only accentuates the madness directed at protective mothers.⁴⁵

Visitation Centers Impose Undue Financial Hardship on Mothers

First, the visitation supervisor often works for just a fraction above minimum wage (\$16 an hour) to a maximum of \$50 an hour. Nonetheless, the mother is charged about \$140 to \$160 per hour for the visit with her child, appropriating the bulk of the hourly fee to the visitation center itself. Many supervised parents are prohibited from engaging relatives or friends to supervise their visits, which would certainly relieve most mothers of an onerous financial burden of paying strangers to supervise their visits. The reason given for this is that the court-contracting visitation centers must “monitor” and “regulate” these visits, wherein visitation supervisors are obligated to write regular progress reports to the court. If one considers, on average, that mothers will be given four hours of supervised visitation per week, sometimes divided into two vis-

itation sessions, the weekly costs add up very quickly.

Second, most court-contracting visitation centers require “orientation” fees to be paid by the supervised parent up front before the visits can be arranged by the visitation facility. Orientation fees can range from \$150 to \$450, depending on the region of the country where the visitation centers are located. During these orientation sessions, the mother is told that her behavior will be closely watched. Mothers are cautioned that notes will be taken on their visits with their children and that the visitation supervisor will be reporting regularly to the judge. What is at stake is certainly not an appraisal of how well the mother relates to the child (as no one has ever accused protective mothers of being deficient in nurturing and loving toward their children), but whether the mother “talks against” the father to the child or whether the mother gets “angry” at the father if the child should make a new disclosure of sexual abuse.

Visitation Centers Impose Punitive Conditions on Mothers and Children

Mothers are not only restricted in what they can say to their children, but they are also forbidden from engaging in normal mother-child activities. For example, they are warned not to bring any food or drinks during their visits with their children, as that can create a burden for the visitation facility in cleaning up afterwards.

In a recent Manhattan Family Court case, the protective mother was cautioned during her orientation session with the visitation center not to bring any gifts for her five-year-old girl because the law guardian and the father’s attorney felt that would be a way of “winning” the child’s loyalty to the mother, which would have been prejudicial to the father. In fact, in this case, once the visitation supervisor showed sympathy for the

mother and urged the court to allow the child to spend overnights with the mother, unsupervised of course, the visitation supervisor was removed from the case and replaced by another supervisor, who was tepid toward the mother at best. Similarly, in a Brooklyn case, the mother was punished with a suspension of her visits because she bent her head down and whispered “I love you” in the ear of her precious six-year-old daughter sitting on her lap. When her visits were restored months later, the judge issued an order forbidding the protective mother from “whispering” to her child; to enforce that order, the visitation supervisor never allowed the young child to sit on the mother’s lap again.

Mothers Must Pay for Court-Ordered “Therapy” to Visit Their Children

Unfortunately, the costs to the protective mother do not end here. As previously mentioned, in addition to paying for her supervised visitation, and for the orientation at the visitation center, the mother must pay for “therapy” as well. Such court-ordered therapy sessions serve as a condition that the mother must meet to have visitation with her child. These are usually weekly sessions and sometimes they are twice a week. The therapist is then ordered to make regular reports to the court and to the visitation center on the progress made in those sessions with the mother—effectively using those sessions to disabuse the mother of the fact that her child had been sexually abused by the father: in other words, “gaslighting” the mother until she starts to doubt her own sanity. The average cost of those “therapy” sessions paid by the mother is \$150 to \$200. And those therapy sessions must continue for as long as the mother has visitation with her child. When the cost of therapy is added to the visitation supervision costs, the protective mother is burdened with an average of \$700 to \$800 per week to see her child.

Family Court “Ransom” Business Model Spans in Many Directions

Taking a child away from a mother without justification and then forcing her to pay to see her child is tantamount to making a mother pay ransom for her child. As previously mentioned, this is a relatively new phenomenon; it had not shown signs of being systematic and routinized at the time we performed our research for the first edition. Similar to the business-driven visitation supervision racket, we have detected another scenario in family court in recent times that likewise follows the ransom paradigm. To wit, children are wrenched from their mothers without a hearing and without any evidence before the court. The mothers are then ordered to pay for an expensive custody evaluation. Having already lost custody, the mothers are certainly in no position to refuse—what other choice do they have?

This practice of wrenching first and then later performing an evaluation—in essence, a “fishing expedition” to justify an unwarranted removal—bears the indicia of ransom. Let’s look at this process more closely for a moment.

In the past, children primarily stayed with the mother—the primary caregiver—until the court-appointed custody evaluator submitted their report to the court. Only after a full trial wherein the evaluator testified and was cross-examined did the judge then make a custody determination in the form of a written decision, often in the mother’s disfavor if the custody evaluator held tendentious views about women. But today, the courts instead remove the child from the mother first, and then order the mother to undergo a court-ordered forensic evaluation. The fees charged for this court-ordered exam are extravagant because the so-called neutral experts nesting in the courts depend on these fees for income. Certainly, had the mother not already lost custody, she might have been in a position to object to such a costly custody evaluation of her parenting skills. But when her child has already been taken from

her, the mother, aching for the return of her child, will pay any amount to get her child back and that includes a court-ordered evaluation at an extravagant rate.

The court's appointment of a custody expert only *after* the mother has already lost custody begs the question of how the judge can remove the child from the mother in the first place as no court-ordered evaluation report had yet been before the court? Certainly, these are not mothers who are active drug users (most don't even have a history of drug use), or those with DUIs or arrest records of any kind, which might be justification to remove a child from its mother even before a full-fledged parental fitness evaluation was performed. Instead, where is the evidence before the court to warrant taking the child away from the mother if the custody evaluation had not yet been performed?

Broad Socioeconomic Ramifications of the Ransom Business Model in the Family Courts

This "ransom" business model that exists in the court system today, in which payments are exacted from mothers after their children are seized without legally required hearings to justify their actions, has broad economic and social consequences that are important to note. First, middle-class mothers can ill afford the court ransom fees, which are heaped on top of the expenses that mothers pay when they lose custody to the child's father. They pay, on average, \$2,000 a month for child support, and to that there are the added costs of healthcare insurance and tuition for the child. Besides, the costs to protective mothers may be even greater at times.

For example, in a Long Island, New York, case, the father accused of sex abuse won custody of his two young children and then asked that the mother pay for "child care services" on top of all the other expenses

she was forced to pay. How ironic: when the children were with the mother, her parents babysat while she went to work, and they certainly didn't charge for their services. But once the mother raised a sex abuse allegation and lost the custody of her children, her own parents were then forbidden to see their grandchildren. As a result, they were now prevented from providing "free" child care for the young children, which they had been doing all along. Interestingly, although the children had a set of paternal grandparents living nearby, the father wanted the mother to pay out-of-pocket for child care when he was unable to care for them.

Child care expenses, sometimes seen by the courts as a legitimate expense to level against the protective mother, drain the mother even further. This example points to the fact that when mothers are excised from the lives of their children, the entire family ecosystem is disrupted: maternal grandparents who had hitherto provided free child care so that their daughters could go to work are now eclipsed from the picture, and fathers must find hired help to stand in place of the child care provided by maternal grandparents. Moreover, can the love of grandparents be replaced by hired help?

Adding to the disruption of the family ecosystem and family stability is the fact that protective mothers bankrupted by the family courts must often depend on their parents for financial assistance. In preparation of this second edition, we interviewed many protective mothers who have explained how their own parents depleted their retirement funds to help them shoulder the enormous costs imposed by the ransom business model ruling the family court system today. And if these mothers file for bankruptcy protections, as some of them have, they are still not protected by bankruptcy laws. This is because the bankruptcy process protects a mother from her creditors but does not shield her from new costs. The harsh reality of this distinction is illustrated by the case of a Houston, Texas mother who filed for bankruptcy but could not persuade the family court to waive the costs of her supervised visits, essentially rendering her bankruptcy protection moot. Sadly, she ran out of funds

and lost all contact with her children when she was no longer able to pay for the supervision of her visits with her children.

So, the mother is left with little choice: either she gives in to the extortion attempt, paying the ransom to see her children, or suffers estrangement from them. Since bankruptcy proceedings do not absolve the financial burden placed on a mother by the family courts (and this is for good reason because if one could discharge child support obligations in bankruptcy proceedings, few fathers would pay support) at the end of the day the protective mothers, impoverished by family court litigation, child support, visitation supervision, and therapy sessions, are faced with a Hobson's choice. Either they impose a financial burden on their own parents to exhaust their retirement accounts, placing them in a dangerously weakened financial position, or they abstain from asking for help and accept never seeing their children again.

As we can see, the sociological consequences of a dysfunctional family court system causes immense suffering and financial insecurity for large segments of the population, most notably retirees who can ill afford to deplete their nest eggs. What this shows is that family court venality has multigenerational repercussions—for the mother, the child, and the grandparents. The family court has degenerated into a toxic system that attacks multiple generations—weakening the family structure and society, and inevitably promoting a shady business model that preys upon battered women and their abused children.

PART V—NARRATIVE CASE HISTORIES AND COURT RECORDS: A LONGITUDINAL VERSUS A CROSS-SECTIONAL STUDY

How the Second Edition is Organized, and How It is Distinguished
from the First Edition

Before discussing the differences between the first edition and the second edition, we must point out the following detail. As with the first edition, we have in the second edition prioritized the confidentiality of the families whose cases we analyze and dissect. Thus, we refrain from citing names of parents and children when presenting narrative data. In addition, when quoting verbatim from court documents we have redacted the names of parents and children. No docket numbers are given either, even though in some states these records are publicly accessible, because our purpose is to protect the privacy of the parents and children where we can. As with the first edition, we have copiously documented each case so that, in the event that either congressional leaders and/or the US Department of Justice should decide to pursue an investigation of the scandalous family court system, we will be able to direct the appropriate parties to the mothers whose cases are profiled in this book, as well as to other cases in our database that have not been included in this volume. We find that the court records, when analyzed in painstaking detail, as we have tried to do in this book, provide a sufficiently compelling case for a federal investigation. The harrowing picture presented in mothers' narratives, as relayed to us, is sadly corroborated by the court record itself. This is why we have consistently pointed to the record as an instantiation of the madness prevailing in the family courts. Although this process of reviewing extensive court files is generally time-consuming, it is important since it strengthens the terrifying narratives provided by the mothers who are caught in the vortex of family court litigation.

Our approach in the second edition, however, is distinguished from that of our first edition in several ways:

First, rather than instantiate, as we did in the first edition, the manifold indicia of family court madness and the resultant parental mutiny by pointing broadly to as many protective mother cases illustrative of this phenomena as possible, we concentrate instead on fewer exemplary cases but analyze them in greater detail, and over a longer period of time.

We decided on the longitudinal approach because our first edition, using a substantial number of cases for illustrative purposes, had already laid out the themes pervasive in the family courts (themes which still persist today); therefore, there was no need to repeat that process. Although for this new edition we hone in on fewer cases, albeit in much more depth, those we chose to present in this book from the many that we had reviewed should not be considered an anomaly. On the contrary, they are truly representative of the egregious abuses present in the family courts today. The longitudinal cases presented in this book are, nevertheless, drawn from various regions of the country to underscore that the phenomena they represent are not exclusive to one particular geographic region.

Overall, our presentation of a few cases in depth, as opposed to broader analyses of multiple cases, allows us to narrate a given case longitudinally and show, for example, how child protective services can become increasingly more aggressive toward the protective mother as their case progresses and, in particular, increasingly hostile toward a protective mother who is a woman of color. Our lengthy case-narrative approach also allows us to show, for example, how law guardians have come to conduct themselves in such a reckless manner that they arrogantly ignore well-documented criminal histories of fathers over time, which have a direct bearing on the safety and well-being of a child.

Second, although in preparation of both our first and second editions of this work we immersed ourselves in the study of full court files—transcripts, orders to show cause, forensic reports, motions and cross-motions, child protective service petitions/case summaries/safety plans, decisions, appeals, and so forth—for our second edition we had the opportunity to examine the pleadings from the *federal* courts as well, since in recent years many more mothers have brought civil rights actions in federal courts in a generally futile attempt to seek remedies they were not able to obtain in the state courts. Even though most, if not all, mothers had their federal cases dismissed because of collateral

estoppel issues and various “abstention” doctrines (e.g., *Younger v. Harris*; *Rooker-Feldman*; “domestic relations exception”) that prevent federal courts from intervening when a matter is before a state court, their federal lawsuit papers nonetheless offered “gold mines” of information, demonstrating the procedural defects/violations pervading their family court cases.

Third, in researching protective mother cases, both for this new edition and for the prior one, we employed a qualitative (rather than a quantitative) research method. Our goal for this current work was to use close analytical inspection to identify “patterns of persecution” of protective mothers that could later be made part of a much larger *quantitative* study of such phenomena. That is, by dissecting the family court institution and its disastrous effects on mothers and children with the kind of methodological scrutiny we employed, we were able to shed light on the sometimes obscure structure of a badly malfunctioning system.

Fourth, although we instantiated family court madness in our first edition by drawing from a broad demographic mix, which naturally included cases in the BIPOC population, in our new edition we *specifically* analyze the effects of racism on the mistreatment of mothers by judges and by child protective services.

For example, we provide a comparative analysis of how the same child welfare agency and, moreover, the same medical expert consulting for that agency, demonstrated a harsher attitude toward the BIPOC mother, in which every statement she made or action she took were somehow used against her. She even felt intimidated by her own attorney (who she eventually fired), fearing his reaction to her taking her four-year-old daughter to the hospital emergency room after an incident of alleged sexual assault during an overnight visitation with the father. We formed our analytical conclusions based on our examination of court records and child protective service case files and by paying close attention to the narrations of BIPOC mothers and, sometimes, their family members as well. All in all, racial discrimination adds another layer of insult for

women of color who are already fighting a blatantly gender-biased family court and child welfare system.

In looking at the racist elements in the cases we studied, we were surprised to see a dearth of professional literature on the important role of racism in protective mother cases. That is, racial factors in protective mother cases have not served as an avid topic of study, although it certainly deserves rigorous examination. Furthermore, even though there are a few women of color who have participated in protective mother support groups, they are nonetheless underrepresented in such groups. Thus, we use the opportunity in writing this second edition to give proper attention to the racial factors that are essential in studying family courts' mistreatment of women and children. Basically, when a system descends to its lowest form of human degradation, as evidenced by unrestrained racial bigotry, this must serve as a clarion call that something is terribly awry in the system writ large.

We were surprised to see a dearth of professional literature on the important role of racism in protective mother cases. That is, racial factors in protective mother cases have not served as a focus for study, although it certainly deserves rigorous examination. Furthermore, women of color are noticeably underrepresented in protective mother support groups. For these and similar reasons, we have taken the opportunity of this second edition to call attention to the racial factors that are essential in studying family courts' mistreatment of women and children. In fact, one can make the argument that racism is a good "litmus test" for evaluating the severity of system malfunction in general. Because when a system descends to its lowest form of human degradation, as evidenced by unrestrained racial bigotry, this serves as an indication that something is terribly awry in the system writ large.

Fifth, although in our first edition we closely examined how bogus mental health theories emerged in family law proceedings, this new volume, which employs a longitudinal approach to the study of protective mother cases, gave us the opportunity to study how a mother's day-to-

day existence is turned upside down by the quack mental health theories that have come to haunt her. Mothers, engaged in recording, chronicling, and carefully documenting the sexual violations of their children, have seen how the truth about those crimes can be so readily turned upside down by the junk science diagnoses attributed to them. This is perhaps the greatest betrayal of battered women by the family courts.

What's even worse is that, as we show in this second edition, the underpinnings of these new renditions of "parental alienation" theories are even more outlandish than their archetypes. Analyzing the variations of Parental Alienation Syndrome (PAS) popularly circulating in the family courts today, we show how junk science theories aimed at discrediting protective mothers have become more insidious over the years.

All things considered, by copiously documenting the institutional violence perpetrated against women in the family courts, we hope this second edition will play a role in the collective effort of protective mothers, advocates, legal practitioners, and students of family law in inspiring a major overhaul of our nation's family courts. This will require a concerted effort by the US Department of Justice, the US Department of Health and Human Services (HHS), and the US House of Representatives and the US Senate. Inasmuch as state legislatures and state judicial conduct commissions have tried for four decades to reform the courts without success, we sorely need the additional force of the federal government. The situation is dire: far too many mothers and children are stuck in the quagmire of venal family courts, and some are paying with their lives.

The second edition is organized as follows: We provide a detailed supplement to the core chapters in the second section of the book: Robed Rage, Lawless Law Guardians, Anti-Social Services, and Mental Health Quackery. In addition, we provide supplementary material to the third section of the book which focuses on reforms. All supplementary material may be found under the subheading "Addendum."